11. The consumer should not be carried away by exaggerating the quality of the goods through advertisements. If there is any discrepancy between the features advertised and the actual features observed in the product, it must be brought to the notice of the seller or advertiser.

12. The consumer has every right to safety, right to be informed, right to choose, right to represent, and right to seek redressal and right to seek information. If any of these rights is violated, the consumer should file a complaint with the appropriate legal machinery under the Consumer Protection Act, 1986.



Consumer's Name: Mr.Shashi Bhushan, Delhi
Bank Complaint against: Punjab National Bank
He has a salary account in Punjab National Bank, ECE House, K.G. Marg New Delhi. His complaint is that while trying to withdraw money from PNB's ATM on 25th August 2012, the machine hang. He had entered only two digits of the password.
He waited a few minutes for the ATM machine to function properly and again tried withdrawing money but the machine hang again. Subsequently, he found out that ₹ 15000/- was debited from his account. He called up customer care and filed a complaint in this regard. He was given a complaint number. On 31st August 2012, the bank sent an sms to the customer rejecting his complaint, saying that the transaction was done successfully. Why is it interesting? As Punjab National Bank's ATM was not working, the customer could not even enter password. So there is no question of withdrawing money. How the bank debited amount from his account is a mystery Secondly, the bank agreed to show footage of the transaction which the bank claimed to be genuine but later backed-out. This is a clear violation of RBI directive. Failed transaction in case of ATM requires not only reversal of any excess debit within 7 days but also ₹ 100 per day as penalty needs to be paid by the bank to the aggrieved customer after the specified period.
NCH Suggestions:- Customer must insist that PNB (which holds the recorded Footage of the ATM transaction) show him the recorded footage to him to prove once and for all who is at fault. Here if the customer has withdrawn the money bank is not required to do anything. But if the customer has not withdrawn the money as claimed by him and the recorded footage proves it, The consumer will not only get ₹ 15000 wrongly debited by the bank but also he is eligible to receive additional ₹ 5000 or more @ ₹ 100 each day of delay from 31st August 2012.

Key Words

Consumer rights — Consumer duties
Cash memo — Cash receipt
Consumer responsibilities



For own Thinking

Students should watch the activities of consumer council of their school.



Case Study

Mr. K.V.Chandran bought a branded LED Television set from a popular T.V showroom with a warranty of five years and installed it in his home. After 18 months of the purchase, the audio system of the T.V developed trouble. He approached the dealer and claimed service to the T.V. but he refused to service the T.V. What is your suggestion to Mr. K.V. Chandran

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